

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, SEPTEMBER 11, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**WELLS FARGO BANK, N.A. vs. MICHAEL J. COLLETT
Case No. CL25-08206**

Defendant's Motion to Dismiss; Defendant's Motion for Leave to File Cross-Complaint;
Defendant's Motion to Compel Fiduciary Duty

TENTATIVE RULING

Defendant MICHAEL J. COLLETT makes three motions in this breach of contract action brought by Plaintiff WELLS FARGO BANK, N.A. Plaintiff alleges breach of an express contract and breach of a contract implied in fact, both based on its extension of a credit card to Defendant, his use of the card, and his alleged failure to make payments on the account. Defendant moves to dismiss Plaintiff's complaint; Defendant moves for leave to file a cross-complaint; and Defendant moves to compel Plaintiff's performance of a fiduciary duty.

Motion to Dismiss. The court construes Defendant's "motion to dismiss" as a motion for judgment on the pleadings, as the thrust of the motion is that Plaintiff has not sufficiently stated a cause of action in its complaint. (See *Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342-343 [taking "motion to strike" targeting sufficiency of allegations as motion for judgment on the pleadings].)

The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

Plaintiff states all elements of its causes of action for breach of contract. Plaintiff states the existence of a valid written contract with regard to its first claim in the form of the credit card agreement between the parties, attached to the complaint as Exhibit A, and the existence of a contract implied in fact between the parties with regard to its second claim in the form of its allegation that Plaintiff issued Defendant a credit card he then used to purchase goods and services with an agreement to repay sums advanced. Plaintiff alleges its performance under either contract in that it advanced sums to Defendant on the credit card. Plaintiff alleges Defendant's breach of either contract in that he stopped making payments on the credit card account. Plaintiff alleges its damages are \$10,085.64.

Defendant's motion to dismiss, construed as a motion for judgment on the pleadings, is denied.

Motion for Leave to File Cross-Complaint. Code of Civil Procedure section 428.10, subdivision (a) permits a party against whom a cause of action has been asserted in a complaint to file a cross-complaint against the initially complaining parties. Code of Civil Procedure section 428.50 allows a cross-complaint against an initially-complaining party to be filed after the cross-complaining party has answered the initial complaint only if the cross-complaining party obtains leave of court. Defendant needs leave of court to file a cross-complaint against Plaintiff because Defendant has answered Plaintiff's complaint.

Where a proposed cross-complaint against an initial party is "compulsory," meaning that it is asserted against the initial party and arises out of the same series of transactions or occurrences as the initial party's complaint and therefore must be filed lest the would-be cross-complainant lose his right to assert his claims, leave to file the cross-complaint "shall" be granted "upon such terms as may be just to the parties" if the would-be cross-complainant has "acted in good faith." (Code Civ. Proc., §§ 426.10, 426.30, 426.50.) A "permissive" cross-complaint, on the other hand, is one against a new party or one where the proposed claims do not relate to the same series of events as the initial party's complaint, and is given leave for filing only in the court's discretion. (Code Civ. Proc., § 428.50, subd. (c) ["interests of justice" standard]; *Orient Handel v. United States Fid. & Guar. Co.* (1987) 192 Cal.App.3d 684, 701.)

Defendant did not attach a copy of his proposed cross-complaint to his motion. His motion does not specify what claims he intends to present against Plaintiff. The court is unable to tell if the proposed cross-complaint is compulsory or permissive and thus cannot tell if leave is subject to the court's discretion.

Defendant's motion for leave to file a cross-complaint is denied without prejudice. Defendant may refile his motion with a copy of the proposed cross-complaint.

Motion to Compel Fiduciary Duty. Defendant's motion to compel specific performance of fiduciary duty is denied. Defendant has not cited any relevant authority supporting his request.
